

25NWCV04385 25NWCV04385

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Case Number: 25NWCV04385 Hearing Date: August 20, 2026 Dept: D

CREDITORS

ADJUSTMENT BUREAU, INC. V. SIWY DENIM, INC., ET AL.

CASE NO.: 25NWCV04385

HEARING: 08/20/2026 @ 9:30 a.m.

#16

TENTATIVE ORDER

Defendant Kris Celine Park's motion to set aside default is DENIED.

Moving party to give notice.

Defendant Kris Celine Park (Park) moves for an order to set aside the default.

Background

On December 10, 2025, Plaintiff Creditors

Adjustment Bureau, Inc. (Plaintiff) filed a complaint against Defendants Siwy Denim, Inc. dba Siwy; New Crew Production Corp.; Raven Denim, Inc.; and Kris Celine Park asserting five causes of action for: (1) Open Book Account; (2) Account Stated; (3) Reasonable Value; (4) Breach of Contract; and (5) Personal Guarantee.

On January 12, 2026, Plaintiff filed a proof of service indicating it served Park with the summons and complaint by substituted service on December 27, 2025.

On February 13, 2026, Plaintiff requested entry for default. The clerk entered the default on the same day.

On March 5, 2026, Defendant filed the instant motion.

On July 10, 2026, Plaintiff filed an opposition.

On August 3, 2026, Defendant filed a reply.

Legal Standard

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect... [The application] shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., §473, subd. (b).)

Although a trial court has discretion to vacate the entry of a default or subsequent judgment, this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief, and that the party has raised that ground in a procedurally proper manner, within any applicable time limits.” (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) “The defendant must ... demonstrate a satisfactory excuse for not responding to the original action in a timely manner.” (Id. at 504.) Moving parties have the initial burden to prove excusable neglect by a preponderance of competent evidence. (Kendall v. Barker (1988) 197 Cal.App.3d 619, 624.)

Analysis

As a preliminary matter, Defendant filed the instant motion on March 5, 2026, less than six months after the Clerk entered Defendant's default on February 13, 2026.

Accordingly, the motion is timely.
(Code Civ. Proc., § 473, subd. (b).)

Defendant contends that her failure to timely respond to the complaint resulted from mistake, inadvertence, surprise, or excusable neglect. (Motion, p. 1; Park Decl., ¶ 12.) Specifically, Defendant declares that she did not intentionally ignore this lawsuit, but was traveling outside the United States in Korea and therefore did not timely review the complaint until after returning to the United States. (Park Decl., ¶¶ 3-5.) Defendant further declares that, upon learning of the default, she promptly contacted Plaintiff's counsel and attempted to file an answer, only to learn that default had already been entered. (Id., ¶¶ 7-8.)

Plaintiff argues in opposition that Defendant has failed to demonstrate that her default resulted from mistake, inadvertence, surprise or excusable neglect. Plaintiff argues that Defendant's own declaration and exhibits establish that she received notice of the action, was aware of the lawsuit, and failed to "timely and fully review the complaint" and to file a timely responsive pleading. Financial hardship, lack of time, travel, illness without documentation, do not constitute excusable neglect. Lastly, Plaintiff argues that Defendant failed to file the answer, which alone is a grounds for denial.

In reply, Defendant submits more evidence.

She states that at the time she was served, she was facing an extraordinary combination of circumstances involving her business responsibilities, international travel, financial hardship, and ongoing medical treatment. (Reply Park Decl., ¶ 4.) She further states that she personally owns and operates two small businesses, and she is responsible for employees,

customers, vendors, payroll, financial obligations, and daily operations. Unlike a large company, Park does not have an in-house legal department or personnel who can manage her personal legal matters. (Id., ¶ 5.)

During the same period, both of Park's businesses were experiencing significant financial hardship. Her daily efforts were focused on keeping the businesses operating and preserving employment for her employees. (Id., ¶ 6.)

Park was also required to travel to Korea for important legal matters. She attaches her passport/immigration records. (Id., ¶ 7.) Preparing for that trip, handling those

matters while abroad, and returning to resume business operations significantly affected Park's ability to promptly respond to the Complaint. (Id.)

Park also states she continues to receive treatment for Hypertrophic Cardiomyopathy (HCM), a serious heart condition, and remains under the care of a cardiologist, takes prescribed medications, and undergoes ongoing monitoring. (Id., ¶ 8.)

Case law instructs that "[a] party who chooses to act as his or her own attorney is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys. [Citation.] ... Thus, as is the case with attorneys, pro. per. litigants must follow correct rules of procedure." (Stover v. Bruntz (2017) 12 Cal.App.5th 19, 31 [citations and quotations omitted].) "[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 984-985.)

Moreover, while evidence that the defendant was seriously ill, or feeble, or unable to understand that she was being served with process, is sufficient to justify discretionary relief under §473(b) (See Kesselman v. Kesselman (1963) 212 Cal.App.2d 196, 207-208), Defendant does not say that her medical condition affected her ability to answer the complaint or understand that she was being served. Further, it is not enough simply to show that the client was "busy" and "forgot" about the lawsuit; i.e., such neglect is inexcusable. (Andrews v. Jacoby (1919) 39 Cal.App. 382, 383-384.) Park's declarations merely provide that she was busy and failed to prioritize the lawsuit. In her initial declaration, she states she was traveling in Korea and therefore did not timely review the complaint until after returning to the United States. (Park Decl., ¶¶ 3-5.) But she was served with the

summons and complaint on December 27, 2026, and went to Korea on January 20, 2026. Thus, she could have filed an answer in the interim. Likewise, it is not ground for relief that defendant failed to answer the complaint because he was indigent and couldn't afford a lawyer. Such a defendant could have obtained help from legal aid offices or appeared in forma pauperis. (Davis v. Thayer (1980) 113 Cal.App.3d 892, 906-907.) A defendant's mistake in judgment in electing to proceed in propria persona does not constitute excusable neglect. (Burnete v. La Casa Dana Apartments (2007) 148 Cal.App.4th 1262, 1264.)

Additionally, Defendant has failed to attach a copy of the proposed responsive pleading to the motion as required by Code of Civil Procedure section 473, subdivision (b), which provides that an application for discretionary relief "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein."

Conclusion

Accordingly, the Court DENIES Defendant's Motion to Set Aside Default.